

TAB 9



Board of Education Report

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File #: Rep-176-22/23, **Version:** 1

Approval of Facilities Contracts Actions

May 9, 2023

Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment “A” including: award of advertised construction contracts; award of job order contract amendments; approval of change orders; completion of contracts; award of informal contracts; award of architectural and engineering contract; extra services / amendments for architectural and engineering contracts and approve the proposed contracts listed in Attachment B for technical services task order contracts capacity increase for chain-link and ornamental fencing repair/replacement services.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013 Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment “A” will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 08, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up to-date facilities that promote learning

Equity Impact:

Not applicable

Issues and Analysis:

There are no policy implications on these agreements

Attachments:

Attachment “A” - Ratification of Facilities Contract Actions Awarded Under Delegated Authority

Attachment “B” - Approval of Facilities Contract Actions Not Under Delegated Authority

Previously adopted Board report referenced in the policy implications section:

Adopted May 8, 2018: [Board Report No. 444-17/18](#)

[<https://drive.google.com/file/d/1LObScI2aOLv21Poz24gkLDhfVRiE6a8K/view?usp=share_link>](https://drive.google.com/file/d/1LObScI2aOLv21Poz24gkLDhfVRiE6a8K/view?usp=share_link)

Informatives:

None

Submitted:

04/11/23

RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED:



SUNG YON LEE
Deputy Chief Business Officer
Business Services and Operations

REVIEWED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning

☒ Approved as to budget impact statement

APPROVED & PRESENTED BY:



JUDITH REECE
Chief Procurement Officer
Procurement Services Division

REVIEWED BY:



MARK HOVATTER
Chief Facilities Executive

☒ Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFICATION</u> <u>NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE</u> <u>OF</u> <u>FUNDS</u>	<u>AMOUNT</u>
Geronimo Concrete, Inc. (SBE)	2310018 / 4400011139	<u>Murchison Early Education Center</u> Outdoor Classroom Project Board Member: <u>Dr. Rocío Rivas</u>	<i>Bond Funds</i> (100%)	\$1,277,298

Ratification of formally competed contract from five (5) bids received to provide outdoor classroom project.

Provides outdoor learning spaces with accessibility, restroom and path of travel upgrades. ([REP #487-17/18](#) June 12, 2018 Amendment to the Facilities Services Division Strategic Execution Plan to Define and Approve 10 Early Education Center Outdoor Classroom Projects) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Factors considered to prioritize the projects were identified by the Early Childhood Education Division in consultation with the Local District and site administrators. Sites were selected based upon the responses received to questionnaires sent to all EECs, each center's proximity and access to existing green space, and evidence of parent, administrator, and staff commitment to the success of the program. Other prioritization factors considered included income level, center enrollment, community interest and demographics. Original information can be found in the board report link included above.

Contract Term: 04/03/23 through completion

Contract Value: \$1,277,298

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Technion Contractors TCI, Inc. (SBE)	2310019 / 4400011384	<u>Marlton Special Education Center</u> ADA Barrier Removal and Elevator Project Board Member: <u>Dr. George J. McKenna III</u>	<i>Bond Funds (100%)</i>	\$2,912,026

Ratification of formally competed best value contract from three (3) bids received to provide elevator installation and connector bridge as part of the first phase of the Accessibility Enhancement Project.

Provides various upgrades to two buildings including new assembly seats, new automatic door openers, casework/counter upgrades, two new concrete ramps, 93 new door hardware, new drinking fountains, new intercoms, locker room upgrades, parking lot upgrade, new playground component, path of travel upgrades, new railings, new signs, new passenger loading zone, and restroom upgrades. ([REP 289-18/19](#) March 19, 2019 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve five accessibility enhancement projects) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

On October 10, 2017 the Board approved the Self-Evaluation and Transition Plan to further District efforts to comply with ADA Title II program accessibility requirements. The five school sites approved under the accessibility enhancement project do not meet their assigned level of accessibility and require facilities improvements. Prioritization included consideration of the characteristics of the District, student population, variety of educational programs, existing level of accessibility. Other prioritization factors included school programs, matriculation options, geographic location, known (or anticipated/matriculating) population of students with disabilities or parents/guardians with disabilities, type of instructional model and public input. Original information can be found in the board report link included above.

Contract Term: 04/10/23 through completion

Contract Value: \$2,912,026

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
NSA Construction Group, Inc. (SBE)	2310020 / 4400011373	<u>Northridge Early Education Center</u> Outdoor Classroom Project and Campus Upgrade Board Member: <u>Scott M. Schmerelson</u>	<i>Bond Funds (100%)</i>	\$2,594,000

Ratification of formally competed best value contract from five (5) bids received to provide outdoor classroom project and campus upgrade of critical items.

Repairs are necessary now due to aging, deteriorated systems that have reached and/or exceeded their service life. Provides an outdoor classroom with at least 10 learning stations, new HVAC units, roofing and necessary upgrades to fire alarm system, accessible path of travel upgrades, restroom and drinking water station upgrades. ([REP #282-20/21](#) April 13, 2021 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve eight early education center outdoor classroom and campus upgrade projects and cancel one project) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Factors considered to prioritize the projects were identified by the Early Childhood Education Division in consultation with the Local District and site administrators. Sites were selected based upon the responses received to questionnaires sent to all EECs, each center's proximity and access to existing green space, and evidence of parent, administrator, and staff commitment to the success of the program. Other prioritization factors considered included income level, center enrollment, community interest and demographics. Original information can be found in the board report link included above.

Contract Term: 03/27/23 through completion

Contract Value: \$2,594,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item D

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Eco Energy Solutions, Inc., dba High Volt Electric	2310021 / 4400011343	<u>Hale Charter Academy MS</u> Main Electrical Switchgear Retrofit Board Member: <u>Scott M. Schmerelson</u>	<i>Bond Funds (100%)</i>	\$839,240

Ratification of formally competed contract from six (6) bids received to provide main electrical switchgear retrofit.

Replaces existing main electrical switchgear by installing new load interrupting switches. Current oil-filled circuit breakers were designed decades ago and are leaking oil. ([REP #298-19/20](#) May 19, 2020 Amendment to the Facilities Services Division Strategic Execution Plan to define and approve two projects that address critical school repair needs) These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 03/16/23 through completion

Contract Value: \$839,240

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item E

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Omega Construction Co., Inc. (SBE)	2230022 / 4400010691 (2230022.01)	Districtwide Job Order Contract Amendment	<i>Restricted Maintenance Funds (100%)</i>	\$1,000,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide painting contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 07/14/22 through 07/13/23
Two (2) option years (OY) remaining

Initial Contract Value:	\$1,000,000
*Amendment No. 1	\$1,000,000
(Executed Date: 03/21/23)	

Aggregate Contract Value: \$2,000,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item F

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Piana Construction & Painting, Inc. (SBE)	2230023 / 4400010640 (2230023.02)	Districtwide Job Order Contract Amendment	<i>Restricted Maintenance Funds (100%)</i>	\$1,000,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide painting contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 06/13/22 through 06/12/23
Two (2) option years (OY) remaining

Initial Contract Value:	\$1,000,000
Amendment No. 1	\$2,000,000
*Amendment No. 2	\$1,000,000
<i>(Executed Date: 03/27/23)</i>	

Aggregate Contract Value: \$4,000,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

* *Current Ratification*

ATTACHMENT A
RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item G

B. APPROVAL OF CHANGE ORDERS

March 2023 = \$4,333,326

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for March 2023 (Average Transaction: \$38,369; Median Transaction: \$15,820)	34	\$1,304,552
	ii. New Construction contract credit change orders for March 2023:	2	<\$8,099>
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for March 2023 (Average Transaction: \$15,862; Median Transaction: \$7,648):	201	\$3,188,279
	iv. Existing Facilities contract credit change orders for March 2023:	10	<\$151,406>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for March 2023, requiring 75 percent approval by the Board:	0	\$0

C.	COMPLETION OF CONTRACTS – March 2023	27	\$8,217,800
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D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$109,300)		
	A & B Letters for March 2023 (Average Transaction: \$37,784; Median Transaction: \$21,750)	45	\$1,700,299

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

H. AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item H

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
DLR Group, Inc.	2320015 / 4400011191	<u>49th Street ES</u> Board Member: <u>Tanya Ortiz Franklin</u>	Bond Funds (100%)	\$273,160

Ratification of design contract to provide architectural and engineering services procured via RFQ R-13019.

Architectural and engineering services for site analysis, project criteria development, and design-build RFP-RFC support phases for the major modernization project. ([REP #074-22/23](#))

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 03/10/23 through completion

Contract Value: \$273,160

Requester:

Aaron Bridgewater, Director
Asset Management
Facilities Services Division

ATTACHMENT A
RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

- O. EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND ENGINEERING CONTRACTS** **\$337,318**

Item I

CONTRACT NOS.	1620141/4400004749; 1720048/4400005973; 1820004/4400006062; 1820028/4400006234; 1820030/4400006256; 1920002/4400006851; 1920009/4400007241; 1920023/4400007774; 1920023/4400007774; 1920023/4400007774; 2020011/4400008160; 2120138/4400009472
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Extra services are for design work that is not covered under the original Agreement. February Extra Services are listed at the link provided.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

[BOE 176 Extra Services](#)

**ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY**

**A. APPROVAL OF TECHNICAL SERVICES TASK ORDER CONTRACTS \$6,000,000
CAPACITY INCREASE AMENDMENT (PCC 20118.5-.9)**

Item J

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
Defence Company (SBE)	2080037/4400008423
Jack Cardani Construction, Inc. (SBE)	2080038/4400008424
R Brothers, Inc. (SBE)	2080039/4400008425

Authorization to increase capacity for three (3) formally competed contracts for chain-link and ornamental fencing repair/replacement services District-wide procured via IFB R-19037. The authority to increase or decrease individual amounts for these contracts will be limited to \$3,000,000 each.

([REP #310-19/20](#) June 9, 2020 Attachment B, Approval of Contracts Not Under Delegated Authority)

Contract Term: 07/01/20 through 06/30/25, includes two (2) one-year renewal options

Original Value: \$3,000,000

*Additional Requested Value: \$6,000,000

**NOT-TO-EXCEED AGGREGATE AMOUNT
\$9,000,000* (100% Restricted Maintenance Funds)**

Requester:
India Griffin, Director
Maintenance & Operations
Facilities Services Division